AN [redacted] ORDER REJECTING THE BID OF CHARLES HAYDEN AND ASSOCIATES FOR VOTING TRUST CERTIFICATES REPRESENTING 34,644 SHARES OF THE CAPITAL STOCK OF THE AMERICAN METAL COMPANY, LIMITED, A NEW YORK CORPORATION OFFERED FOR SALE AT PUBLIC AUCTION ON APRIL 7, 1919, PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THERETO.

the President

By virtue of the authority vested in ~~me~~ by "An act to define, regulate, and punish trading with the enemy, and for other purposes," approved October 6, 1917, known as the "Trading with the enemy Act," and the amendment thereto embodied in "An act making appropriations to supply urgency deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years, on account of war expenses, and for other purposes," approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years, on account of war expenses, and for other purposes," approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 and signed by the President under the date of the third day of December, 1918, I hereby make the following determination and order:

WHEREAS, Francis P. Garvan, Alien Property Custodian, has reported to me that voting trust certificates issued under an agreement dated December 5, 1918, between owners of stock in The American Metal Company, Limited, of the first part, and Joseph F. Guffey, Henry Morgenthau and Berthold Hochschild, and others, of the second part, representing 34,644 shares of the par value of One Hundred ($100) Dollars each, of the capital stock of The American Metal Company, Limited, a corporation

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organized and existing under the laws of the State of New York, were offered for sale to the highest bidder at public sale on April 7, 1919, at 10.30 o'clock a. m., at which sale the highest bid received for the said property was made by Charles Hayden, in behalf of himself and certain associates.

NOW,THEREFORE, I hereby authorize and direct the Alien Property Custodian to reject all bids received at the said sale, including the bid of the said Charles Hayden and associates, and to resell such property in such manner and under such terms and conditions as I, or the President, may hereafter direct.

My reasons for the foregoing determination and order are: (1) That the said Charles Hayden and associates have failed to furnish to the Alien Property Custodian evidence of the identity and of the qualification of all the persons interested in said bid under the provisions of the "Trading with the enemy Act"; (2) that it has been impossible for the Alien Property Custodian to complete his investigation as to the identity of, and the qualification of, the persons interested in said bid within the period of thirty days from the date of the sale of the said property, which is the period fixed by the terms of sale within which the said bid shall be accepted or rejected, the said Charles Hayden and associates, as such highest bidders, refusing to agree to any extension of the said period.

Done in the District of Columbia this the seventh day of May in the year of our Lord one thousand nine hundred and nineteen and of the independence of the United States of America the one hundred and forty-third.

Frank L. Polk

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